

Section II: Local Agency Procedure Manual

XI. Local Civil Rights

B. Barriers to Providing Services

Purpose

To provide guidance to Local Agencies in removing barriers to WIC services.

Policy

WIC program services will be accessible to all applicants and participants.

1. Barriers to Service

Access to services and customer service is a priority of the Montana WIC Program. Barriers to apply and participate should be reduced or eliminated when possible.

2. Administrative Barriers

New staff receive training on customer service, civil rights, and the goals and purpose of the WIC Program. To improve access and customer service:

- WIC staff must make every reasonable effort to have someone available to answer incoming calls during clinic hours. When someone is not available, a voicemail system must be in place.
- Receiving WIC services during standard business hours can be a barrier. WIC Staff are encouraged to make reasonable efforts to provide services outside of standard business hours.
- Remote issuance of multiple months benefits and coordinating WIC appointments with other programs is encouraged.
- If a participant does not speak English or has Limited English Proficiency (LEP), access to interpretive services is required. Anyone with another communication impairment must be accommodated to reasonable standards and in line with the American with Disabilities Act.

3. Physical Barriers

- Easy access to the clinic by pregnant women and those participants with physical disabilities is critical to providing WIC services.
- Staff must ensure that the clinic layout can provide a private space to discuss the confidential topics in a WIC appointment, if requested by the participant or deemed necessary by WIC staff.
- WIC staff must make reasonable efforts to modify procedures to serve applicants/participants who cannot physically come to the clinic. This may include providing services in a more private or more accessible off-site location, providing services through remote communication technology (confidential and secure), or by coordinating services with healthcare providers, or other programs WIC is associated with (such as Home Visiting and Immunizations).

4. Federal Regulations

The following is adapted from "Information and Technical Assistance on the Americans with Disabilities Act, Title III: Public Accommodations and Commercial Facilities."

- The Montana WIC Program will provide services in an integrated setting, unless separate or different measures are necessary to ensure equal opportunity. WIC will eliminate unnecessary

eligibility standards or rules that deny individuals with disabilities an equal opportunity to use WIC services. WIC will make reasonable modifications in policies, practices and procedures that deny equal access to individuals with disabilities.

- Safety requirements may be imposed only if they are necessary for the safety of the applicant/participant. They must be based on actual risks and not on mere speculation, stereotypes, or generalizations about individuals with disabilities.
- Examples of modifications to remove barriers include installing ramps, making curb cuts at sidewalks and entrances, rearranging tables, chairs, display racks and other furniture, widening doorways, installing grab bars in toilet stalls, arranging for the services of a person familiar with sign language to assist in serving deaf applicants/participants, and/or adding raised letters or Braille to elevator control buttons.
- Based on the Americans with Disabilities Act's accessibility guidelines for new construction and alterations, relocation, WIC clinics must be in sites with:
 - Van accessible parking
 - Accessible routes
 - Ramps, stairs, elevators
 - Doors, entrances
 - Bathrooms, alarms, signs, and fixed seating
- The public or common use bathroom must be accessible and in good working order.